

24STCV03912 24STCV03912

County: los-angeles

Division: Civil Law and Motion

Department: 731

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Case Number: 24STCV03912 Hearing Date: July 30, 2026 Dept: 731

[TENTATIVE] ORDER RE: DEFENDANT

IMMCO INVESTMENT, LLC'S MOTION ESTABLISHING ADMISSIONS AND FOR MONETARY
SANCTIONS IN THE AMOUNT OF \$2250.00

Before the Court is Defendant Immco

Investments, LLC's ("Immco") motion deeming as admitted the truth in request
for admission served by Immco on in pro per Plaintiff, Eul Hyung Choi.

Immco served the motion on

Plaintiff via mail to the address listed in her pleadings, as demonstrated by
the proof of service attached to the notice of motion and motion, separate
statement, declaration, and proposed order supporting the motion before the
Court. (Compare Second Amended Complaint, p. 1 [identical physical address for
Plaintiff], with June 3, 2026, filings [CRS No. 1408] [proofs of service
showing service by mail at same address].)

No opposition appears in the
record.

After review, the Court finds in
favor of Immco.

A discovering party may file a motion

to deem as admitted any unanswered requests for admission or any requests
answered in a late or unverified response. (Code Civ. Proc., § 2033.280, subd.
(b); see Code Civ. Proc., § 2033.240, subd. (a) [RFA responses must be signed
by responding party under oath]; see Appleton v. Superior Court (1988)
206 Cal.App.3d 632, 636 [unsworn response to RFAs is treated like no

response].) These requests are not automatically deemed admitted; the discovery party must make the motion. (See Code Civ. Proc., § 2033.280, subd. (b).)

To establish this ground, a movant must show (1) proper service (id. at § 2033.070), (2) expiration of the deadline to respond (id. at § 2033.250, subds. (a), (b)), and (3) that (a) the responding party served no response (Code Civ. Proc., § 2033.280, subd. (b)), (b) the propounding party served a late response (Code Civ. Proc., § 2033.280, subd. (b)), or (3) the responding party served an unsworn response (see *Appleton v. Superior Court*, supra, 206 Cal.App.3d at p. 636 [unsworn response to RFAs is treated like no response]).

Here, Immco's paper's show (1) proper service (see Jun. 3, 2026, filings [CRS No. 1408] at Proof of Service) and (2)-(3) nonresponse by Plaintiff after expiration of the response deadline (Motion, Garcia Decl., ¶¶ 3-7, Ex. A).

No opposition appears in the record to dispute this position.

Accordingly, Immco's motion is GRANTED.

Immco also requests monetary sanctions. Code of Civil Procedure section 2033.280, subdivision (c), requires the Court to impose a monetary sanction against the party whose failure to serve timely responses necessitated the motion unless the Court finds that the party acted with substantial justification or that other circumstances make the imposition of sanctions unjust. No such showing has been made.

Accordingly, the request for monetary sanctions is GRANTED in the amount of \$2,250.00, payable by Plaintiff Eul Hyung Choi to Defendant Immco Investments, LLC, through its counsel of record, within 30 days.

Defendant Immco Investments, LLC is ordered to give notice.

Parties who intend to submit

on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.